

Motion to Strike

Defendant moves to strike the claims for punitive damages, special damages, emotional distress damages, and damages in the form of "prejudice in a criminal case." Inasmuch as the general demurrer to each of the causes of action of the complaint was sustained, the claims for damages are stricken as well. Leave to amend is granted.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 6/15/2026.
(Judge's initials) (Date)

(34)

Tentative Ruling

Re: **Gonzalez v. City of Clovis, et al.**
Superior Court Case No. 25CECG03033

Hearing Date: June 16, 2026 (Dept. 503)

Motion: Defendant California Highway Patrol's Demurrer to Complaint

Tentative Ruling:

To continue the motion to Thursday, July 30, 2026 at 3:30 p.m. in Department 503, in order to allow the parties to meet and confer in person or by telephone, as required. If this resolves the issues, defendants shall call the calendar clerk to take the motion off calendar. If it does not resolve the issues, counsel for defendants shall file a declaration, on or before July 20, 2026, stating the efforts made. If no declaration is filed, the motion will be taken off calendar.

Explanation:

Under Code of Civil Procedure section 430.41, "[b]efore filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." (Code Civ. Proc., § 430.41, subd. (a).) "As part of the meet and confer process, the demurring party shall identify all of the specific causes of action that it believes are subject to demurrer and identify with legal support the basis of the deficiencies." (Code Civ. Proc., § 430.41, subd. (a)(1).)

"The demurring party shall file and serve with the demurrer a declaration stating either of the following: (A) The means by which the demurring party met and conferred with the party who filed the pleading subject to demurrer, and that the parties did not reach an agreement resolving the objections raised in the demurrer. (B) That the party who filed the pleading subject to demurrer failed to respond to the meet and confer request of the demurring party or otherwise failed to meet and confer in good faith." (Code Civ. Proc., § 430.41m subd. (a)(3)(A), (B), paragraph breaks omitted.) The statute regarding motions to strike contains the same requirements regarding meet and confer efforts. (Code Civ. Proc. § 435.5.)

Here, counsel for defendant has filed a declaration indicating counsel sent several emails to plaintiffs' attorney that went unanswered with the exception of the grant of an extension of time to respond to the First Amended Complaint. The declaration does not show that counsel complied with the requirement to meet and confer in person or by telephone.

The parties must engage in good faith meet and confer, in person or by telephone, as set forth in the statute. The court will continue the hearing to allow the parties to meet and confer, and only if efforts are unsuccessful will it rule on the merits. The court anticipates particular attention will be paid to whether this public entity defendant is the proper defendant as the complaint alleges four separate public entities employed defendant Corey David Holston and owned the vehicle involved in the collision. An answer has been filed on behalf of the County of Fresno and Corey David Holston.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

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